

COMMITTEE ON FEDERALISM, MILITARY AFFAIRS & ELECTIONS
HOUSE OF REPRESENTATIVES AMENDMENTS TO S.B. 1037
(Reference to Senate engrossed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[~~GREEN STRIKEOUT IN BRACKETS~~] indicates new text removed from statute or previously enacted session law.

[~~Green strikeout in brackets~~] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<~~Green strikeout in carets~~>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 16-442, Arizona Revised Statutes, is amended to
3 read:

4 16-442. Committee approval; adoption of vote tabulating
5 equipment; experimental use; emergency

6 A. The secretary of state shall appoint a committee of three
7 persons, to consist of a member of the engineering college at one of the
8 universities, a member of the state bar of Arizona and one person familiar
9 with voting processes in ~~the~~ THIS state, ~~no~~ NOT more than two of whom
10 shall be of the same political party, ~~and~~ at least one of whom shall have
11 at least five years of experience with and shall be able to render an
12 opinion based on knowledge of, training in or education in electronic
13 voting systems, procedures and security. The committee shall investigate
14 and test the various types of vote recording or tabulating machines or
15 devices that may be used under this article. The committee shall submit
16 its recommendations to the secretary of state who shall make final
17 adoption of the type or types, make or makes, model or models to be
18 certified for use in this state. The committee shall serve without
19 compensation.

20 B. Machines or devices used at any election for federal, state or
21 county offices may only be certified for use in this state and may only be
22 used in this state if they comply with the help America vote act of 2002
23 (P.L. 107-252; 116 STAT. 1666; 52 UNITED STATES CODE SECTIONS 20901
24 THROUGH 21145) and if those machines or devices have been tested and
25 approved by a laboratory that is accredited pursuant to the help America
26 vote act of 2002.

27 C. After consultation with the committee prescribed by subsection A
28 of this section, the secretary of state shall adopt standards that specify

1 the criteria for loss of certification for equipment that was used at any
2 election for federal, state or county offices and that was previously
3 certified for use in this state. On loss of certification, machines or
4 devices used at any election may not be used for any election for federal,
5 state or county offices in this state unless recertified for use in this
6 state.

7 D. The secretary of state may revoke the certification of any
8 voting system or device for use in a federal, state or county election in
9 this state or may prohibit for up to five years the purchase, lease or use
10 of any voting system or device leased, installed or used by a person or
11 firm in connection with a federal, state or county election in this state,
12 or both, if either of the following occurs:

13 1. The person or firm installs, uses or ~~permits~~ ALLOWS the use of a
14 voting system or device that is not certified for use or approved for
15 experimental use in this state pursuant to this section.

16 2. The person or firm uses or includes hardware, firmware or
17 software in a version that is not certified for use or approved for
18 experimental use pursuant to this section in a certified voting system or
19 device.

20 E. The governing body of a city or town or the board of directors
21 of an agricultural improvement district may adopt for use in elections any
22 kind of electronic voting system or vote tabulating device approved by the
23 secretary of state, and thereupon the voting or marking device and vote
24 tabulating equipment may be used at any or all elections for voting,
25 recording and counting votes cast at an election.

26 F. The secretary of state or the governing body may provide for the
27 experimental use of a voting system or device without a final adoption of
28 the voting system or device, and its use at the election is as valid as if
29 the machines had been permanently adopted.

30 G. THE SECRETARY OF STATE SHALL ENSURE THAT [ELECTRONIC VOTING
31 SYSTEMS INCLUDING, WITHOUT LIMITATION,] VOTE RECORDING AND VOTE TABULATING
32 MACHINES AND [DEVICES] [ELECTION MANAGEMENT SYSTEMS] THAT ARE APPROVED FOR
33 USE PURSUANT TO THIS SECTION:

34 ~~[1. HAVE ALL OPERATING SYSTEMS AND SOFTWARE CONFIGURED TO THE~~
35 ~~APPROPRIATE LEVEL OF SECURITY CONSISTENT WITH BEST PRACTICES IN STANDARDS~~
36 ~~ISSUED BY THE UNITED STATES DEPARTMENT OF HOMELAND SECURITY CYBERSECURITY~~
37 ~~AND INFRASTRUCTURE SECURITY AGENCY.]~~

38 ~~[2.]~~ [1.] DO NOT HAVE HARDWARE INSTALLED THAT SUPPORTS [DIRECT OR
39 INDIRECT] INTERNET CONNECTIVITY OR ANY OTHER FORM OF REMOTE ACCESS OR
40 SOFTWARE THAT ALLOWS ANY CHANGE TO RESULTS IN FILES OR A DATABASE.

41 ~~[3.]~~ [2.] [SUPPORT] [SUPPORTS] THE USAGE AND TRACKING OF USERS
42 BASED ON UNIQUE CREDENTIALS THAT ARE CHANGED AT LEAST ONCE PER ELECTION
43 CYCLE FOR EACH USER.

44 ~~[4.]~~ [3.] LOG ANY DELETIONS OF BALLOT IMAGES, WINDOWS EVENT LOGS
45 AND RESULTS FILES. THE SYSTEM ALSO SHALL MAINTAIN ELECTION SOFTWARE LOGS.

46 ~~[5.]~~ [4.] MAINTAIN FOR TWENTY-TWO MONTHS AS ELECTION DATA THE DATA
47 PRESCRIBED IN PARAGRAPHS 3 AND 4 OF THIS SUBSECTION.

1 ~~6.~~ H. After consultation with the committee prescribed by
2 subsection A of this section, the secretary of state may approve for
3 emergency use an upgrade or modification to a voting system or device that
4 is certified for use in this state if the governing body establishes in an
5 open meeting that the election cannot be conducted without the emergency
6 certification. Any emergency certification shall be limited to ~~no~~ NOT
7 more than six months. At the conclusion of the certification period the
8 voting system or device shall be decertified and unavailable for future
9 use unless certified in accordance with this section.

10 [I. FOR THE PURPOSES OF THIS SECTION, INDIRECT INTERNET CONNECTIVITY
11 INCLUDES THE USE OF AN ELECTION MANAGEMENT SYSTEM GATEWAY SYSTEM.]

12 Sec. 2. Title 16, chapter 4, article 9, Arizona Revised Statutes,
13 is amended by adding section 16-567, to read:

14 16-567. Polling place and voting center equipment; custody;
15 violation; classification

16 A. NOTWITHSTANDING ANY OTHER LAW, ANY VOTING EQUIPMENT THAT IS USED
17 IN A POLLING PLACE OR VOTING CENTER MAY NOT HAVE INTERNET ACCESS AND MUST
18 PROHIBIT ACCESS BY ANY MEANS TO ANY [AGGREGATED] DATA OR RESULTS. IF THE
19 EQUIPMENT HAS AN ACCESSIBLE PORT, THE PORT MUST BE LOCKED WITH A TAMPER-
20 PROOF SEAL AND MUST BE LOGGED IN THE CHAIN OF CUSTODY DOCUMENT WHEN BROKEN
21 OR ACCESSED. THE DELIVERY, USE AND RETURN OF THE EQUIPMENT SHALL BE
22 LOGGED ON A CHAIN OF CUSTODY DOCUMENT SO THAT THE NAME AND SIGNATURE OF
23 EVERY PERSON WHO DELIVERS, RECEIVES, USES AND RETURNS THAT EQUIPMENT IS
24 RECORDED AND RETAINED AS AN OFFICIAL ELECTION RECORD.

25 B. A PERSON WHO VIOLATES THIS SECTION IS GUILTY OF A CLASS 1
26 MISDEMEANOR.

27 Sec. 3. Title 16, chapter 4, article 10, Arizona Revised Statutes,
28 is amended by adding section 16-605, to read:

29 16-605. Counting center equipment; election results; data;
30 custody; violation; classification

31 A. NOTWITHSTANDING ANY OTHER LAW, ANY [ELECTION MANAGEMENT SYSTEM
32 OR] TABULATION EQUIPMENT THAT IS USED IN A CENTRAL COUNTING CENTER OR
33 OTHER TABULATION CENTER MAY NOT HAVE INTERNET ACCESS [, MUST NOT BE
34 CAPABLE OF INDIRECT INTERNET CONNECTIVITY.] AND MUST PROHIBIT ACCESS BY
35 ANY MEANS TO ANY DATA OR RESULTS UNTIL USED BY AUTHORIZED ELECTION
36 PERSONNEL ONLY. [IF THE EQUIPMENT HAS AN ACCESSIBLE] [SUCH EQUIPMENT
37 SHALL NOT HAVE A] PORT[, THE PORT MUST BE LOCKED WITH A TAMPER-PROOF SEAL
38 AND MUST BE LOGGED IN THE CHAIN OF CUSTODY DOCUMENT WHEN BROKEN OR
39 ACCESSED. ONLY AUTHORIZED PERSONNEL, INCLUDING POLITICAL PARTY OBSERVERS,
40 MAY BE PRESENT AT THE TABULATION OF VOTES]. THE USE AND RETURN OF THE
41 EQUIPMENT THAT CONTAINS ELECTION RESULTS AND DATA~~[, INCLUDING ANY~~
42 ~~REMOVABLE DATA STORAGE DEVICE,]~~ SHALL BE LOGGED ON A CHAIN OF CUSTODY
43 DOCUMENT SO THAT THE NAME AND SIGNATURE OF EVERY PERSON WHO DELIVERS,
44 RECEIVES, USES AND RETURNS THE STORAGE DEVICE OR OTHER EQUIPMENT THAT
45 CONTAINS ELECTION DATA AND ELECTION RESULTS IS RECORDED AND RETAINED AS AN
46 OFFICIAL ELECTION RECORD. ~~[FOR ANY REMOVABLE STORAGE DEVICE, TWO~~
47 ~~OBSERVERS WHO ARE NOT MEMBERS OF THE SAME POLITICAL PARTY SHALL BE PRESENT~~

1 ~~AT ALL TIMES, INCLUDING THE INSERTION AND REMOVAL OF THE DEVICE AND DURING~~
2 ~~ANY TRANSPORTATION OF THE DEVICE. THE REMOVABLE STORAGE DEVICE MAY NOT BE~~
3 ~~UNDER THE SOLE CUSTODY AND CONTROL OF ONLY ONE PERSON.]~~

4 B. NOTWITHSTANDING ANY OTHER LAW, ALL ACTIVITIES AT THE COUNTING
5 CENTER SHALL BE INCLUDED IN A NONSTOP VIDEO THAT IS POSTED TO THE COUNTY'S
6 WEBSITE.

7 C. A PERSON WHO [NEGLIGENTLY] VIOLATES THIS SECTION IS GUILTY OF A
8 CLASS 1 MISDEMEANOR.

9 [D. FOR THE PURPOSES OF THIS SECTION, INDIRECT INTERNET
10 CONNECTIVITY INCLUDES THE USE OF AN ELECTION MANAGEMENT SYSTEM GATEWAY
11 SYSTEM.]

12 <<Sec. 4. Legislative findings

13 [The legislature finds that:

14 1. It has refused on multiple occasions to authorize the use of an
15 EMS gateway system which allows for election management systems to be
16 connected indirectly to the internet.

17 2. Notwithstanding this refusal, the Arizona Secretary of State
18 continues to violate the law and allow EMS systems to be connected
19 indirectly to the internet.

20 3. The current Secretary of State has consistently taken the
21 position that he has authority to do whatever is not expressly prohibited.
22 contrary to clear judicial precedent.

23 4. As a result of this hubris, the current Secretary of State has
24 his systems hacked by what he claims to be agents of the Iranian
25 Revolutionary Guard, jeopardizing the security of our state's voter rolls
26 and placing Arizonans at risk of identity theft and fraud.

27 5. Nothing connected to the internet can be fully secured from
28 hacking.

29 6. The only way to have secure elections is to ensure that no
30 component of any elections management system is capable of connecting to
31 the internet, directly or indirectly.]>>

32 Enroll and engross to conform

33 Amend title to conform

And, as so amended, it do pass

JOHN GILLETTE
CHAIRMAN

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